



File No: EXP202302575

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On October 24, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against UNIPREX, S.A. (hereinafter, the respondent), through the Agreement that is transcribed:

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File No: EXP202302575 (PS/00436/2023)

AGREEMENT TO INITIATE SANCTIONING PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On 02/28/23, Mr. A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection regarding the alleged violation of data protection regulations: Regulation (EU) 2016/679 of the European Parliament and of the Council, of 04/27/16, concerning the Protection of Natural Persons with regard to the Processing of Personal Data and the Free Movement of such Data (GDPR) and Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD).

In the complaint, it is reported that a video was published on the social network Facebook showing a group of 3 men and a woman assaulting a man lying on the ground, with several of the participants being recognizable. The complainant provided the link to the publication:

***URL.1

SECOND: On 02/28/23, the Director of the Spanish Agency for Data Protection issued an Internal Note urging the General Subdirectorate of Data Inspection to initiate ex officio Preliminary Investigation Actions aimed at substantiating these facts.

THIRD: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the investigative powers granted to control authorities under Article 58.1 of the GDPR, and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

- During the investigation actions, publications were found where 3 men and a woman could be seen in a recognizable manner assaulting a man lying on the ground. For all data controllers, as well as for the entity META PLATFORMS IRELAND LIMITED, a precautionary measure for the urgent removal of content was issued on 02/28/23. These points were confirmed in relation to UNIPREX, S.A., with NIF A28782936 (hereinafter, UNIPREX):

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***URL.2

FOURTH: On 03/01/23, a document was received by this Agency from UNIPREX, S.A. informing that on the same day of receipt of the notification, it had proceeded to delete the content indicated in the precautionary measure, which was verified.

LEGAL GROUNDS

I

Competence

By virtue of the powers that Article 58.2 of the GDPR recognizes to each control authority and according to the provisions of Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Image as Personal Data

The image of a person, according to Article 4.1 of the GDPR, is a personal data as it makes the person identifiable, and its protection, therefore, is subject to said GDPR:

“‘personal data’: any information relating to an identified or identifiable natural person (‘the data subject’); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;”

For its part, Article 4.2 of the GDPR defines “processing” as:

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“any operation or set of operations performed on personal data or sets of personal data, whether by automated procedures or not, such as collection, recording, organization, structuring, storage, adaptation or modification, extraction, consultation, use, communication by transmission, dissemination or any other form of enabling access, comparison or interconnection, limitation, erasure or destruction.”

Therefore, the inclusion of images of a person in any type of publication that identifies or could make them identifiable constitutes processing of personal data and, consequently, the responsible party is obliged to comply with the obligations set forth in the GDPR and the LOPDGDD.

III

Right to data protection

This procedure is initiated because the reported party published, on the internet site (TWITTER), referred to in the facts, images of an assault where the faces of the individuals involved, both the aggressors and the assaulted person, are clearly visible, thus constituting processing of personal data. In this regard, the STC 292/2000, of November 30, provides the following:

“The content of the fundamental right to data protection consists of a power of disposition and control over personal data that enables the individual to decide which of those data to provide to a third party, whether the State or a private individual, or which this third party may collect, and also allows the individual to know who holds that personal data and for what purpose, being able to oppose that possession or use.

These powers of disposition and control over personal data, which are part of the content of the fundamental right to data protection, are legally specified in the ability to consent to the collection, obtaining, and access to personal data, its subsequent storage and processing, as well as its possible use or uses, by a third party, whether the State or a private individual.

And this right to consent to the knowledge and processing, whether computerized or not, of personal data requires, as indispensable complements, on the one hand, the ability to know at all times who has that personal data and what use they are subjecting it to, and, on the other hand, the power to oppose that possession and uses.”

Furthermore, every data controller must respect the principles of processing set out in Article 5 of the GDPR, highlighting in this case, paragraph 1.c), which establishes that: “Personal data shall be adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed (‘data minimization’);”

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However, we are faced with a fundamental right that is not absolute, since, in certain cases, the

Fundamental Right to Data Protection may yield to the prevalence of other rights and freedoms that are also constitutionally recognized and protected, such as, for example, the Fundamental Right to Freedom of Information, which must be weighed on a case-by-case basis.

However, in the present case, as we will explain, it should be considered that the processing carried out within the framework of freedom of information has been excessive, as there is no prevailing public informative interest in the dissemination of the images of those involved in the assault, without adding any value to the information by maintaining the faces in such a way that makes the individuals identifiable.

IV

Right to information

In the conflict between the Fundamental Rights to Freedom of Information and the Fundamental Right to the Protection of Personal Data, even though equal degrees of protection are recognized for both constitutional rights, ordinarily the former tends to be granted precedence by our courts, after evaluating and weighing all the elements at play.

However, preponderance does not mean prevalence when, considering all the concurrent circumstances in a specific case, the limits set by regulations and jurisprudence are exceeded. In this regard, the Article 29 Working Party in its Opinion 06/2014 on the concept of legitimate interest of the data controller under Article 7 of Directive 95/46/EC, when examining the legal basis of legitimate interest under Article 7.1.f) of Directive 95/46/EC, fully transferable to the current art. 6.1.f) of the GDPR, includes the right to freedom of expression or information as one of the scenarios in which the issue of legitimate interest may arise, asserting that “without prejudice to whether the interests of the data controller will ultimately prevail over the interests and rights of the data subjects when the balancing test is performed.”

V

Limits to the Fundamental Right to Freedom of Information.

That said, the Fundamental Right to Freedom of Information is also not absolute. We can observe very clear limits established by the courts in the civil sphere, in relation to the Right to Honor, Personal and Family Privacy, and the Right to One's Own Image.

Thus, we will cite, among others, the STC 27/2020, of February 24, 2020 (amparo appeal 1369-2017) which provides, in relation to the image of a person, and based on the incontrovertible fact that it makes them identifiable, that:

“...the issue at stake is reduced to weighing whether the unauthorized reproduction of the image of an anonymous person, that is, someone who is not a public figure, but who suddenly and involuntarily acquires a role in the newsworthy event, in this case as a victim of the failed attempt of homicide by...

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of her brother and the subsequent suicide of the latter, constituted an illegitimate intrusion into her fundamental right to her own image (art. 18.1 CE).

[...] ...that criminal events are newsworthy occurrences, even regardless of the private nature of the individual affected by the news. However, the limit lies in the individualization, whether direct or indirect, of the victim, as this information is not of public interest because it lacks relevance for the information that is permitted to be transmitted (SSTC 20/1992, of February 20; 219/1992, of December 3; 232/1993, of July 12; 52/2002, of February 25; 121/2002, of May 20, and 127/2003, of June 30).

Thus, this is currently recognized by Law 4/2015, of April 27, on the Statute of the Victim of Crime, in force since October 28, 2015, which warns of the need “from public authorities [to provide] a response as broad as possible, not only legal but also social, to victims, not only repairing the damage within the framework of a criminal process but also minimizing other traumatic effects on a moral level that their condition may generate, all regardless of their procedural situation. Therefore, this Statute, in line with European regulations on the matter and with the demands posed by our society, aims, starting from the recognition of the dignity of victims, to defend their material and moral goods and, with that, those

of society as a whole.” In cases such as those raised in this appeal, this Tribunal must give relevance to the prevalence of the right to the image of the crime victim over informational freedoms, as the graphic information became idle or superfluous due to the lack of real interest in the transmission of the information, in this case, the apparent commission of a homicide and subsequent suicide.”

We will add the STS, from its First Civil Chamber, 272/2011 of April 11, 2011 (rec. 1747/2008), which, regarding the necessary data to provide information and the limits to public interest states that:

“b) Trivial information is not protected (ATC 75/2006), but the act of providing unnecessary data in a case of rape (the full name, the initials of the surnames, the portal of the street where the victim lived) that have no community relevance, do not respect privacy, only seek to satisfy curiosity, produce disturbances or discomfort, and unnecessarily reveal aspects of personal and private life, allowing neighbors, close individuals, and family members to fully identify the victim and to know in detail a fact that is seriously harmful to their dignity (STC 185/2002) or about a disease that has no public interest and directly affects the irreducible sphere of intimacy and is revealed for the sake of a mere joke or jest (STC 232/1993);”.

Likewise, the STS, from its First Civil Chamber, Judgment 661/2016 of November 10, 2016 (rec. 3318/2014), regarding the capture and dissemination in court of the image of a victim of gender violence ruled that:

“1.^a) The interest of the questioned information nor the right of the defendant television channel to broadcast images recorded during the act is not disputed.”

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oral trial of the criminal case, as there is no limitation in this regard agreed upon by the judicial body.

2.^a) The only disputed point is, therefore, whether the identification of the claimant as a victim of the crimes adjudicated in said criminal case, through close-up images of her face and the mention of her full name and place of residence on 31/03/2022, was also included in the fundamental right of the defendant television channel to broadcast truthful information or, on the contrary, was limited by the fundamental rights of the claimant to her personal privacy and her own image.

3.^a) Regarding this issue, the jurisprudence has recognized the general interest and public relevance of information about criminal cases (ruling 547/2011, of July 20), which is accentuated in cases of physical and psychological abuse (rulings 128/2011, of March 1, and 547/2011, of July 20), but it has also specified, concerning the identification of the individuals involved in the trial, that the accused and the victim are not on equal footing, as a complete identification is permissible for the former, and not just by their initials, due to the nature and social significance of the crimes of abuse (ruling 547/2011, of July 20).

[...]

6.^a) In conclusion, the defendant television channel should have acted with the prudence of a diligent professional and avoided broadcasting images that represented the appellant in close-up, either by refraining from airing the corresponding shots or by using technical procedures to blur her features and prevent her recognition (ruling 311/2013, of May 8). Likewise, it should have avoided mentioning her full name, because this data, insufficient on its own to constitute an unlawful intrusion, became relevant when pronounced on screen simultaneously with the image of the claimant and added to the mention of her place of residence, all of which were unnecessary for the essence of the content of the information, as demonstrated by news about the same trial published the following day in other media.

7.^a) The identification of the claimant through her image and the indicated personal data and its direct connection with an episode of gender-based violence and other serious crimes, when the simultaneous or subsequent revelation of data regarding how the victim and her aggressor met and the manner in which the criminal acts occurred was foreseeable, implies that the loss of anonymity violated both the claimant's right to her own image, due to the broadcast of her physical features, and her personal and family privacy, to the extent that reserved data pertaining to her private life (that she went online to start a relationship or the intimate content of some of her conversations), lacking

offensive substance in a situation of anonymity, became relevant from the moment any person who watched those news programs and resided in the victim's locality could know to whom they referred, so that the psychological harm inherent to her status as a victim of the crimes was compounded by the moral harm consisting of the disclosure of private life data that she had not consented to make public."

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As we can verify, there is a clear reference to the excessive processing of personal data (some of which are not of an intimate nature) to provide the information, considering them unnecessary in light of the concurrent circumstances. Sometimes the courts refer to intimate data, but at other times it concerns personal data that is not intimate, such as, for example, the image of a natural person obtained from a social network or their name and surname.

VI

Balance between the Fundamental Right to Freedom of Information and the Fundamental Right to the Protection of Personal Data.

In the specific case examined, as we have indicated, the reported party published, on the site referred to in the facts, images of several people who were involved in a fight.

This is not, as in other jurisprudential cases examined, about giving precedence to one fundamental right over another, having to choose which one carries more weight in a specific case. Rather, it is about finding a balance between both to achieve the purpose of the first without undermining the second.

The reconciliation of both rights is nothing new, as the European legislator mandates such reconciliation in Article 85 of the GDPR. As we have seen previously, the Fundamental Right to Freedom of Information is not unlimited, since the jurisprudential interpretation when confronting it with other rights and freedoms does not allow it in all cases and with full breadth, but rather, the prevalence that courts usually grant it can be limited by other fundamental rights that must also be respected. Thus, its limitation is observed when the personal data provided was unnecessary for the essence of the content of the information.

That is, the freedom of information of the media is not called into question, but rather the weighing against the right to data protection based on the proportionality and necessity of publishing the specific personal data. Such a situation could have been resolved by using technical procedures to prevent the recognition of the individuals involved in the fight, such as, for example, pixelating the faces, a security measure that is ordinarily applied by the media depending on the case.

Furthermore, we must emphasize that the individuals involved in the fight are anonymous, and our Constitutional Court, in all STC 58/2018 of June 4, states that public authorities, public officials, and public figures or those engaged in activities that entail public notoriety "voluntarily accept the risk that their subjective personal rights may be affected by criticisms, opinions, or adverse revelations and, therefore, the right to information reaches, in relation to them, its maximum level of legitimizing effectiveness, in that their life and moral conduct participate in the general interest with greater intensity than that of private individuals who, without a vocation for public projection, are circumstantially involved in matters of public significance, to whom..."

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It is necessary, therefore, to recognize a higher scope of privacy, which prevents granting general significance to facts or behaviors that would have such significance if referred to public figures." The CJEU (Second Chamber) ruling of February 14, 2019, in case C 345/17, *Sergejs Buivids*, mentions various criteria for weighing the right to respect for privacy against the right to freedom of expression, among which are "the contribution to a debate of general interest, the notoriety of the affected person,

the subject of the report, the previous behavior of the interested party, the content, the form and the repercussions of the publication, the manner and circumstances in which the information was obtained, and its veracity (see, in this regard, the judgment of the ECtHR of June 27, 2017, *Satakunnan Markkinapörssi Oy and Satamedia Oy v. Finland*, CE:ECHR:2017:0627JUD000093113, paragraph 165)."

Thus, for a matter to be considered of general interest, of public relevance, it must not only be due to the person involved but also to the subject matter to which it refers. Both requirements must be met, resulting, to further elaborate on what was stated in the previous section, that in the examined case, the intervening persons are not public; rather, it is of great interest that they are not recognized by third parties.

The individuals involved in the fight are anonymous persons and must remain so, in such a way that their fundamental rights are fully guaranteed. In the present case, (i) we are neither dealing with persons of public relevance, in the sense that such relevance is sufficient to understand that it entails, *ex lege*, a dispossession of their fundamental right to the protection of their personal data, and (ii) while we are dealing with "facts of public relevance," in the sense that they are revealed as "necessary" for the public interest, that necessity does not extend to the provision of personal data of the intervening parties.

Therefore, and as expressed by the Supreme Court in its ruling (civil) 697/2019, of December 19, 2019, the formation of a free public opinion does not require, nor justifies, affecting the fundamental right to one's own image [in this case, to the protection of personal data] with such gravity and in a manner that does not maintain the necessary connection with the identification of the person subject to the information.

Every data controller has obligations regarding data protection, as prescribed in the GDPR and in the LOPDGDD, highlighting, in terms of our interest, the proactive responsibility, Article 5.2 of the GDPR, the assessment of risks, and the implementation of appropriate security measures. Obligations that are even more relevant when, as in the case we are examining, it is particularly sensitive.

VII

Classification of the Committed Offense

In accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the reported party has processed data that was excessive as it was not necessary for the purpose for which it was processed.

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The known facts could constitute an infringement, attributable to the responding party, of Article 5.1.c) of the GDPR, to the extent expressed in the previous Legal Grounds, which, if confirmed, could imply the commission of the infringement classified in Article 83.5, paragraph a) of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states that:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% at most of the total annual global turnover of the previous financial year, opting for the higher amount: a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;

In this regard, the LOPDGDD, in its Article 71, establishes that "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infringements."

For the purposes of the statute of limitations, Article 72.1.a) LOPDGDD considers very serious:

"1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a three-year statute of limitations:

those that involve a substantial violation of the articles mentioned therein and, in particular, the following: a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

VIII

Proposal and Graduation of the Sanction

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

“Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 is, in each individual case, effective, proportionate, and dissuasive.

Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for those contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of affected parties and the level of damage and harm suffered; b) the intent or negligence in the

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infringement; c) any measures taken by the data controller or processor to mitigate the damages suffered by the data subjects; d) the degree of responsibility of the data controller or processor, taking into account the technical or organizational measures they have applied pursuant to Articles 25 and 32; e) any previous infringement committed by the data controller or processor; f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement; g) the categories of personal data affected by the infringement; h) the manner in which the supervisory authority became aware of the infringement, in particular whether the data controller or processor notified the infringement and, if so, to what extent; i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the data controller or processor in relation to the same matter, compliance with those measures; j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42; and k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.” Regarding paragraph k) of Article 83.2 of the GDPR, the LOPDGDD, Article 76, “Sanctions and corrective measures,” provides:

“2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account: a) The ongoing nature of the infringement. b) The connection of the infringer's activity with the processing of personal data. c) The benefits obtained as a result of the commission of the infringement. d) The possibility that the conduct of the affected party may have induced the commission of the infringement. e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity. f) The impact on the rights of minors. g) Having, when not mandatory, a data protection officer. h) The voluntary submission by the data controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any data subject.”

In this case, considering the severity of the established infringement, especially taking into account the consequences that its commission causes to the complaining party, the imposition of a fine is warranted, in addition to the adoption of measures, if applicable.

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Thus, the volume of business of the party being claimed (74,315,745 euros for the fiscal year 2022) is considered as a preliminary factor.

In accordance with the indicated provisions, based on the evidence currently available in the initiation

agreement of the sanctioning procedure and without prejudice to what results from the instruction of the procedure, for the purpose of determining the amount of the sanctions to be imposed in this case, it is considered appropriate.

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graduating the sanctions according to the following criteria established by the transcribed provisions: In an initial assessment, the following aggravating criteria are considered concurrent:

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Article 83.2.a) of the GDPR: Nature, severity, and duration of the infringement: The Agency considers that the nature of the infringement is very serious since it entails a loss of disposition and control over the personal data of individuals who, without their consent, appear in the video published by the reported party, as their dissemination condemns them to the possibility of being recognized by third parties, causing serious harm and detriment.

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Article 83.2.b) of the GDPR. Intentionality or negligence in the infringement: Although the Agency considers that there was no intentionality on the part of the media outlet, the Agency concludes that it was negligent in not ensuring a procedure that guaranteed the protection of personal data in such sensitive circumstances, especially when, on many occasions, images are pixelated in news reports to prevent the recognition of the individuals involved.

It is of particular importance to recall at this point the Judgment of the National Court of October 17, 2007 (rec. 63/2006), where it is indicated that: "...the Supreme Court has understood that there is recklessness whenever a legal duty of care is disregarded, that is, when the infringer does not behave with the required diligence. And in assessing the degree of diligence, the professionalism or lack thereof of the subject must be especially weighed, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it must be insisted upon the rigor and exquisite care to comply with the legal provisions in this regard."

It is also considered that it is appropriate to graduate the sanction to be imposed according to the following aggravating circumstance regulated in Article 76.2 of the LOPDGDD:

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The link of the infringer's activity with the processing of personal data (paragraph b).

Considering the factors presented, the initial assessment that reaches the fine for the infringement of Article 5.1.c) of the GDPR is €50,000 (fifty thousand euros), without prejudice to what results from the instruction of the procedure.

IX

Adoption of measures

If the infringement is confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust its actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a..."

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specified deadline...". The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR. It is warned that failure to comply with a possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as

an infringement in its Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

X

Provisional Measure

Article 69.1 and 2 of the LOPDGDD states the following:

“Article 69. Provisional measures and guarantees of rights. 1. During the preliminary investigation actions or the initiation of a procedure for the exercise of sanctioning authority, the Spanish Agency for Data Protection may reasonably agree to the necessary and proportionate provisional measures to safeguard the fundamental right to data protection and, in particular, those provided for in Article 66.1 of Regulation (EU) 2016/679, the precautionary blocking of data and the immediate obligation to comply with the requested right.

2. In cases where the Spanish Agency for Data Protection considers that the continuation of the processing of personal data, its communication, or international transfer will result in a serious detriment to the right to personal data protection, it may order the controllers or processors of the treatments to block the data and cease its processing, and, in the event of non-compliance with such mandates, proceed to immobilization.”

On the other hand, Article 56 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), as applicable, states the following:

“1. Once the procedure has been initiated, the competent administrative body to resolve may adopt, ex officio or at the request of a party and in a reasoned manner, the provisional measures it deems appropriate to ensure the effectiveness of the resolution that may be issued, if there are sufficient elements of judgment for this, in accordance with the principles of proportionality, effectiveness, and minimal burden.

2. Before the initiation of the administrative procedure, the competent body to initiate or instruct the procedure, ex officio or at the request of a party, in cases of urgent and unavoidable need and for the provisional protection of the interests involved, may adopt in a reasoned manner the provisional measures that are necessary and proportionate. The provisional measures must be confirmed, modified, or lifted in the initiation agreement of the procedure, which must be carried out within fifteen days following their adoption, which may be subject to the appropriate appeal.

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In any case, such measures will be rendered ineffective if the procedure is not initiated within that period or when the initiation agreement does not contain an express statement regarding them.

3. In accordance with the provisions of the two preceding paragraphs, the following provisional measures may be agreed upon, in the terms provided in Law 1/2000, of January 7, on Civil Procedure: (...)

i) Any other measures that, for the protection of the rights of the interested parties, are expressly provided for by law, or that are deemed necessary to ensure the effectiveness of the resolution.

4. Provisional measures that may cause harm that is difficult or impossible to repair to the interested parties or that involve a violation of rights protected by law may not be adopted.

5. Provisional measures may be lifted or modified during the processing of the procedure, ex officio or at the request of a party, by virtue of unforeseen circumstances or those that could not be taken into account at the time of their adoption. In any case, they will cease to have effect when the administrative resolution that concludes the corresponding procedure takes effect.”

In the present case, within the framework of the preliminary investigation actions mentioned in Background Third and Fourth, it was agreed to require the complained party to, as a precautionary measure, remove the content referred to in the complaint. The analyzed facts pose a high risk to the guarantees and freedoms of the affected individuals, such that the continuation of the processing

entails a very serious and irreparable detriment to their rights. Therefore, the suspension of processing is the only measure that can be adopted to safeguard the Fundamental Right to Data Protection, proving to be, moreover, the least harmful, burdensome, and proportional for the complained party. Based on these premises and in order to restore and guarantee the rights and freedoms of the affected individuals, it is deemed appropriate to confirm the provisional measure agreed upon during the preliminary investigation phase.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,
IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against the entity UNIPREX, S.A. with CIF: A28782936 for the alleged infringement of Article 5.1.c) of the GDPR, classified in Article 83.5.a) of the GDPR.

SECOND: TO CONFIRM the provisional measure agreed on 28/02/23, during the preliminary investigation actions, and order UNIPREX, S.A. in accordance with the provisions of Article 69 of the LOPDGDD and Article 56 of the LPACAP, to refrain from

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disclose the personal data referred to in these proceedings. The provisional measure shall remain in effect until the final resolution of the procedure, which must confirm, modify, or lift it, without prejudice to the provisions of Article 56.5 of the LPACAP.

THIRD: APPOINT Mr. B.B.B. as Instructor, and Ms. C.C.C. as Secretary, if applicable, indicating that either of them may be recused, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

FOURTH: INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the claimant and its documentation, the documents obtained and generated by the General Subdirectorato of Data Inspection during the investigation phase, all of which are part of this administrative file.

FIFTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be 50,000 euros (fifty thousand euros), for the infringement of Article 5.1.c) of the GDPR, without prejudice to what results from the instruction of this file.

SIXTH: NOTIFY this agreement to initiate the sanctioning file to the entity UNIPREX, S.A., granting it a ten working day period for it to submit allegations and present the evidence it deems appropriate. If no allegations are made against this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, if the sanction to be imposed is a fine, it may acknowledge its responsibility within the period granted for submitting allegations to this initiation agreement; this will entail a 20% reduction of the sanction to be imposed in this procedure, equivalent in this case to 10,000 euros. With the application of this reduction, the sanction would be set at 40,000 euros, resolving the procedure with the imposition of this sanction.

Similarly, it may, at any time prior to the resolution of this procedure, make voluntary payment of the proposed sanction, which will imply a 20% reduction of its amount, equivalent in this case to 10,000 euros. With the application of this reduction, the sanction would be set at 40,000 euros, and its payment will imply the termination of the procedure.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to submit allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at 30,000 euros (thirty thousand euros).

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction.

If it is decided to proceed with the voluntary payment of any of the amounts indicated above, it must be made effective by depositing it into account No. ES00 0000 0000 0000 0000 0000 opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which it is entitled.

Likewise, the proof of payment must be sent to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure shall have a maximum duration of twelve months from the date of the initiation agreement or, where appropriate, from the draft initiation agreement. After this period, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

Finally, it is noted that in accordance with the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

Mar España Martí

Director of the Spanish Agency for Data Protection.

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SECOND: On November 10, 2023, the respondent has proceeded to pay the sanction in the amount of 30,000 euros making use of the two reductions provided in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to submit allegations to the opening of the procedure, entails the renunciation of any action or administrative appeal against the sanction and the acknowledgment of responsibility in relation to the facts referred to in the Initiation Agreement.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of the

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Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD), grants the Director of the Spanish Agency for the Protection of Data the authority to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the Procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in Sanctioning Procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the latter has been justified as inappropriate, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the

termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness shall be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation.”

In accordance with the above,

the Director of the Spanish Agency for the Protection of Data RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202302575, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO CONFIRM the provisional measure agreed upon on 28/02/23, during the preliminary investigation proceedings, and to order UNIPREX, S.A. to refrain from disclosing the personal data referred to in these proceedings.

THIRD: TO NOTIFY this resolution to UNIPREX, S.A.

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In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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